

		As to punitive damages, the jury should also determine whether Aventon (through JW) engaged in malicious, oppressive, or fraudulent conduct. Accordingly, in total, the subject Motion is DENIED. Plaintiff to give notice.
16.	30-2025-01461933 Rivas vs. Apple, Inc.	1. Motion for Summary Judgment and/or Adjudication Defendant Apple moves for summary judgment on the ground that the undisputed evidence establishes that Rivas’s iPhone 13, IMEI 359888174969753, Serial Number FYRRY93PG4 (the “subject iPhone 13”) did not undergo any thermal event and did not cause the incident alleged in the operative First Amended Complaint. Plaintiff Herber Henry Angular Rivas (“Plaintiff”) opposed the motion, arguing that Plaintiff’s expert’s testimony creates triable issues of material fact that must be determined by the trier of fact. A. MOTION FOR SUMMARY JUDGMENT BURDENS Code of Civil Procedure section 437c(c) discusses the moving party’s burden on a motion for summary judgment: “The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact.” (Code Civ. Proc., § 437c, subd. (c).) “A defendant or cross-defendant has met that party's burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2).) In discussing the burden on the opposing party, Code of Civil Procedure section 437c states: “Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific

facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).)

“Supporting and opposing affidavits or declarations shall be made by a person on personal knowledge, shall set forth admissible evidence, and shall show affirmatively that the affiant is competent to testify to the matters stated in the affidavits or declarations. An objection based on the failure to comply with the requirements of this subdivision, if not made at the hearing, shall be deemed waived.” (Code Civ. Proc., § 437c, subd. (d).)

B. PLAINTIFF’S PRODUCT’S LIABILITY CAUSE OF ACTION

Here, Defendant demurs to the first and only cause of action for products liability, which contains three counts: (1) count one, strict liability based on Defendant’s (a) manufacturing and assembly of the product, (b) design and manufacturing component parts supplied to the manufacturer, and (b) selling the product to the public, (2) count two, negligence, and (3) count three, breach of implied written warranty.

Defendant argues that it is entitled to summary judgment because the subject iPhone 13 did not undergo a thermal event. Defendant relies on expert Donald J. Hoffmann, Ph.D, P.E., I.A.A.I.-C.F.I.’s expert opinion.

“[A] plaintiff may seek recovery in a products liability case either on the theory of strict liability in tort or on the theory of negligence” as well as breach of implied warranty. (*Merrill v. Navegar, Inc.* (2001) 26 Cal.4th 465, 478 [internal quotations omitted]; *Shepard v. Alexian Brothers Hosp.* (1973) 33 Cal.App.3d 606, 615 [“the liability imposed by strict liability in tort and breach of express and implied warranties is virtually the same, i.e., a form of liability without fault”].)

“The rules of products liability focus responsibility for defects, whether negligently or nonnegligently caused, on the manufacturer of the completed product.” (*Id.*, 478–479 [internal citations omitted].) “Thus, under either a negligence or a strict liability theory of products liability, to recover from a manufacturer, a plaintiff must prove that a defect caused injury.” (*Id.*, 479.)

Here, Defendant argues that the allegations simply did not occur because the “subject iPhone 13 did not undergo a thermal event.” Thus, at issue in this motion is whether the iPhone underwent a thermal event.

Plaintiff testified the following regarding the incident:

“I was on a video call. I heard like an interference sound. It sounded like somebody was stepping on dry leaves. The phone started making a sound, a noise. Then all of a sudden, I couldn't say that it exploded, but it was something that happened. Flames and some liquid came out of the inside of the phone.” (ROA 37,

Defendant's Evidence, Declaration of Jeffrey Skinner, ¶ 2, Ex. 1, Plaintiff's Deposition, p. 37: 6-12.)

As stated above, Defendant relies on expert Donald J. Hoffmann, Ph.D, P.E., I.A.A.I.-C.F.I.'s expert opinion. Plaintiff made objections to this declaration and those objections are **OVERRULED**. Defendant's expert opines the following:

"On October 7, 2024, SEL conducted a non-destructive examination of the subject iPhone 13. During this examination, SEL photographed and took radiographic imaging, including x-rays and CT scans, of the subject iPhone 13 to document and evaluate the condition of its internal electronics and battery. The imaging showed that the subject iPhone 13 did not have any localized internal thermal damage such as melting or decomposition of components. The imaging also showed that the subject iPhone 13 battery did not vent, undergo thermal runaway, or internally overheat." (ROA 36, Declaration of Dr. Donald Hoffmann, ¶ 9.)

"SEL, with the permission of Rivas's counsel, then conducted a destructive examination of the subject iPhone 13 on January 24, 2025, at which inspection the device was opened to permit visual inspection of its interior components. This examination confirmed the results of the radiographic imaging taken on October 7, 2024. There was no physical evidence of thermal runaway to the internal components of the subject iPhone 13 or the battery. The uniform heat damage to the Subject iPhone 13 is consistent with exposure to an external heat source." (ROA 36, Declaration of Dr. Donald Hoffmann, ¶ 10.)

"The examination of the battery and other internal components of the device and the lack of battery venting confirm the battery did not undergo an internal thermal event like that alleged by Rivas. The incident Rivas alleged occurred with the subject iPhone 13 was not caused by the device itself, as any malfunction of the battery or other internal component causing the release of flames from the device would have left clear evidence of thermal runaway to the interior of the subject iPhone 13." (ROA 36, Declaration of Dr. Donald Hoffmann, ¶ 11.)

"Although there is external damage to the screen of the subject iPhone 13, it is consistent with damage caused by an external heat source, rather than an internal thermal event." (ROA 36, Declaration of Dr. Donald Hoffmann, ¶ 12.)

"Based on my review of the photographs and radiographic imaging of the subject iPhone 13, the subject iPhone 13 did not undergo a battery thermal event or any other internal malfunction. There is no physical evidence of battery venting or thermal runaway." (ROA 36, Declaration of Dr. Donald Hoffmann, ¶ 18.)

"The external damage to the screen of the subject iPhone 13 is consistent with damage caused by an external heat source, rather than an internal thermal event." (ROA 36, Declaration of Dr. Donald Hoffmann, ¶ 19.)

Defendant carried its initial burden on summary judgment.

In opposition, Plaintiff proffers to Declaration of Kenneth Soloman, PH.D., P.E., POST PH.D. Defendant made objections to Plaintiff's expert's declaration, arguing that Plaintiff's expert is not qualified to provide an expert opinion on the subject matter at issue in this motion. Defendant's objections are **OVERRULED**.

Plaintiff's expert casts doubt on the Defendant's expert's conclusions and methodologies, which in turn creates triable issues of the material facts that Defendant proffers. Plaintiff's expert testifies:

"In my opinion, the methodology employed by Dr. Hoffmann does not provide a sufficient scientific basis to conclude that the subject iPhone did not malfunction or that the incident could not have occurred as described by Mr. Rivas." (ROA 63, Declaration of Kenneth Alvin, ¶ 7(A).)

"Dr. Hoffmann concludes that the subject iPhone could not have malfunctioned because no battery venting or thermal damage was observed during the inspection. In my opinion, the absence of battery venting or thermal damage alone is not sufficient to conclude that the subject iPhone did not malfunction." (ROA 63, Declaration of Kenneth Alvin, ¶ 7(B).)

"Dr. Hoffmann further opines that a battery capable of producing flames or releasing energy from the device would always exhibit evidence of battery venting and internal thermal damage. I am unaware of any peer-reviewed engineering publication, ASTM standard, NFPA publication, UL standard, SAE publication, or other generally accepted engineering authority concluding that every lithium-ion battery malfunction producing the type of event alleged by Mr. Rivas must always leave permanent evidence of battery venting and internal thermal damage observable years later. Accordingly, I disagree with Dr. Hoffmann's opinion that the absence of such evidence excludes the reported malfunction." (ROA 63, Declaration of Kenneth Alvin, ¶ 7(C).)

"The inspections performed by Safety Engineering Laboratories occurred approximately two years after the reported incident. Those inspections document the condition of the subject iPhone when it was examined, not immediately after the reported incident." (ROA 63, Declaration of Kenneth Alvin, ¶ 7(D).)

"Mr. Rivas reported that while using the subject iPhone, the device emitted an unusual sound followed by flames and liquid exiting the device, resulting in burns to his hand. Those observations are relevant to any engineering failure analysis and should not be disregarded solely because a later inspection found no evidence of battery venting." (ROA 63, Declaration of Kenneth Alvin, ¶ 7(E).)

"Dr. Hoffmann did not attempt to replicate the operating conditions that existed immediately prior to or during the reported incident. Instead, his opinions are based

solely upon a post incident inspection of the subject iPhone.” (ROA 63, Declaration of Kenneth Alvin, ¶ 7(F).)

“Dr. Hoffmann concludes that the damage to the display is consistent with an external heat source. However, he does not identify any testing, analysis, or other evidence supporting that conclusion.” (ROA 63, Declaration of Kenneth Alvin, ¶ 7(G).)

“ Accordingly, it is my opinion, to a reasonable degree of engineering certainty, that Dr. Hoffmann's opinions do not provide a sufficient basis to exclude a malfunction of the subject iPhone as the cause of Plaintiff's reported injuries.” (ROA 63, Declaration of Kenneth Alvin, ¶ 7(H).)

The Court finds that Plaintiff's evidence defeats the motion for summary judgment by proffering evidence that disputes whether the thermal event alleged “always shows evidence of damage from the venting” or “always shows evidence of localized internal thermal damage, such as melting, decomposition, and discoloration of the battery and nearby internal components.” Moreover, Plaintiff's evidence calls into question the credibility of the results Defendant's expert obtained during the inspection – which is a triable issue for the trier of fact to weigh, not the Court on a motion for summary judgment.

Defendant argues on reply that “Rivas must identify a defect and establish causation, not Apple.” This, however, is not the burden in opposing a motion for summary judgment. Rather, Plaintiff need only “show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto,” which can be done by “set[ting] forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.” As discussed above, Plaintiff meets this burden.

In sum, based on applicable law and as set forth herein, the Motion for Summary Judgment is **DENIED**. The Court finds that there are triable issues of material facts as to whether the iPhone underwent a thermal event or malfunction that caused the incident at issue.

Plaintiff's objections to Defendant's expert declaration are **OVERRULED**.

Defendant's objections to Plaintiff's expert declaration are **OVERRULED**.

Plaintiff to give notice.